

Tentative Rulings
June 5, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

If you do not wish to submit on a tentative ruling, you must appear for the hearing either in person; CourtCall (888-882-6878 or www.courtcall.com); or by ZOOM. Failure to appear is deemed a waiver of oral argument. If all parties submit on a tentative ruling, it will become the ruling of the court. The tentative ruling may note particular issues on which the court requests further argument. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the Court no longer provides an official Court Reporter to transcribe proceedings in this Department. Parties who wish to have an official record of the proceedings in addition to a minute order must retain a private Certified Shorthand Reporter for the hearing and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the department if you would like a copy of this form. Parties who do not retain a Certified Shorthand Reporter to be designated as an official Court Reporter Pro Tempore are deemed to have waived an official Court Reporter for the proceeding.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

13. *Stanley, et al, v. Lake Chalet Homeowners Association, et al*, Case No. CIVSB2320918 Stanley Plaintiffs' MTC Further Resps. from Def. K.Prine for Requests for Production, Set four Stanley Plaintiffs' MTC Further Resps. from Def. T.Prine for Requests for Production, Set four 6/5/26, 9:00 a.m., Dept. S-17

These matters were continued from their original hearing date of April 3, 2026

The Court would find the motions **MOOT** in light of the production of verified responses. The Court would find substantial justification to forgo sanctions.

In this case, given the status of production and the lack of reasonable good faith attempt to resolve the concerns, the Court previously ordered the parties to "to talk the matter over, compare their views, consult, and deliberate." (*Townsend v. Superior Court* (1998) 61 Cal.App.4th 1431, 1439.) At the prior hearing, Plaintiff was ordered to file a declaration explaining the attempt to resolve and state what issues remained, articulation "good cause to justify each remaining demand." (Tentative, April 3, 2026.) Defendants were also instructed to file a responsive declaration. That declaration attached the relevant responses, which were served on May 12, 2026. Supplemental declarations have been received.

Plaintiffs Stanley move to compel further responses to Requests for Production, Set Four (RFP4), numbers. 70, 71, 79, 84, 85, 87, 88, and 89, from Defendants Prine. The Prines now represent that on May 12, 2026, they served "the agreed-upon verified further responses." (June 2, 2026, Deenihan Decl., ¶3, Exhs. A-B, underline in original.) They state their further responses included all responsive documents for Plaintiffs' prescribed timeframes. (*Id.*, ¶ 4; See Toubia Supp. Decl., ¶¶16-19, Exh. 7.) The production also included: (1) 53 videos from a security camera at the subject property, totaling approximately 100 minutes of footage; (2) 70 separate "Good Neighbor Policies" signed by tenants; and (3) 8 pages of written correspondence and communications to or from neighbors. (Deenihan Supp. Decl., ¶14.) Moreover, their counsel declares that no documents from Plaintiff's prescribed timeframes were withheld from production. (*Id.*, ¶15.)

Thus, it appears that the motions to compel are now moot given the production.
